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|    |                                                                                             | <p>Thus, this cause of action is not subject to the statute of limitations to the extent Plaintiff seeks to impose a constructive trust on funds allegedly converted by Defendant per the claims in the 4th cause of action. The demurrer is likewise overruled as to the 7<sup>th</sup> cause of action.</p> <p><u>8<sup>th</sup> cause of action for accounting</u></p> <p>Plaintiff alleges that the “parties’ finances became intertwined through Defendant’s wrongful use of joint or diverted assets,” and that “Defendants [sic] alone possess knowledge of the true amounts Defendant Danissa Colombana took or concealed.” (Complaint, ¶¶ 62, 63.)</p> <p>The Statute of Limitations for an accounting claim is also three (3) years given that the gravamen of the claim is a taking of Plaintiff’s property. (§ 338(c).)</p> <p>The demurrer to this cause of action is also overruled as it is based on the same alleged facts as the conversion claim.</p> <p><u>Collateral Estoppel and Res Judicata</u></p> <p>Defendant’s arguments that collateral estoppel and res judicata bar Plaintiff’s Complaint are unavailing.</p> <p>Pursuant to the documents subject to the request for judicial notice, Plaintiff’s allegations in the family law proceeding were not adjudicated on their merits. (See <i>Alpha Mechanical, Heating &amp; Air Conditioning, Inc. v. Travelers Casualty &amp; Surety Co. of America</i> (2005) 133 Cal.App.4th 1319, 1326.) The court denied Plaintiff’s application because it was untimely.</p> <p>Thus, these doctrines do not apply.</p> <p>If Plaintiff decides not to amend his Complaint and move forward with the 4<sup>th</sup>, 7<sup>th</sup>, and 8<sup>th</sup> causes of action, he shall notify Defendant and this Court within 15 days, and Defendant shall have 15 days thereafter to file an Answer.</p> <p>The clerk will give notice.</p> |
| 8. | 2025-1501960<br>Iron Mountain Holdings Inc. vs. Coastline Community Development Group, Inc. | <p><i>No tentative. The Court has questions for counsel.</i></p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                           |